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Judgment Sheet

IN THE LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

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Criminal Appeal No.1840 of 2009

MOHAMMAD RIAZ and 2 others

Versus

THE STATE

JUDGMENT

Date of hearing: 19.02.2015

Appellants by: Mr. Saeed Ullah Khan,
Advocate, Ms. Saika Javed,
Advocate and Ms. Nighat Saeed
Mughal, Advocate.

Respondent by: Mr. Tariq Saleem Sheikh,
Special Prosecutor for the Anti-
Narcotics Force.

MIRZA VIQAS RAUF, J. The instant appeal is directed against the judgment dated 23rd of October, 2009 passed by the learned Judge Special Court Control of Narcotic Substances, Faisalabad, whereby the appellants Muhammad Riaz, Abdul Samad and Gul Wali were convicted under Section 9(c) & 15 of The Control of Narcotic Substances Act, 1997 and were awarded sentence as follows :-

Mohammad Riaz	Imprisonment for life & fine of Rs.10,00,000/- (ten lac) and in case of non-payment of fine, six months simple imprisonment
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Abdul Samad	Imprisonment for life & fine of Rs.10,00,000/- (ten lac) and in case of non-payment of fine, six months simple imprisonment
Gul Wali	Imprisonment for life & fine of Rs.10,00,000/- (ten lac) and in case of non-payment of fine, six months simple imprisonment

2. Precisely the facts necessary for adjudication of instant appeal are that on the basis of spy information, a raiding party was constituted, comprising of Anti-Narcotics Force officials, under the supervision of Asmatullah Khan Assistant Director. The raiding party in pursuance thereof, reached at Allied Turn, Faisalabad at about 01:00 am and barricade there. At 02:00 am, a truck bearing registration No.SGA-6173 came from Chiniot who was singled to stop. Three persons, seated in the truck were apprehended. Abdul Samad appellant No.2 was present on the driving seat whereas beside him Mohammad Riaz appellant No.1 and Gul Wali appellant No.3 were sitting there. All the three accused led to the respective recoveries from the secret compartments of the truck. On the pointation of Abdul Samad appellant, forty packets of charas, weighing forty kilograms and three packets of opium weighing 2.5 kilograms were recovered from the diesel tank. Muhammad Riaz led to the recovery of fifty nine packets charas weighing 70.8 kilograms and opium weighing 7.2 kilograms from the roof of the truck, whereas Gul Wali got recovered forty two packets of charas, weighing forty two kilograms, from the roof on the left side, alongwith eight pistols and live bullets. This event was reduced into writing by Asmatullah Assistant Director as complaint, which was later on transmitted to the Police Station Anti-Narcotics Force District Faisalabad where the formal FIR

No.11 dated 11th of December, 2005 was registered for the offence under Sections 9(c) & 15 of The Control of Narcotic Substances Act, 1997 and Section 13 of The Arms Ordinance (XX of 1965).

3. After formal investigation, report under Section 173 of The Criminal Procedure Code, 1898 was submitted before the learned trial court and the appellants were sent to face the trial. The learned trial court on receipt of report, supplied the requisite copies to the appellants in terms of Section 265-C of The Criminal Procedure Code, 1898 whereas fourth accused Muhammad Arshad Rana was declared proclaimed offender vide order dated 4th of July, 2006. Muhammad Arshad Rana was arrayed as an accused on the statement of Muhammad Riaz appellant. The charge was framed on 8th of May, 2007 under Sections 9(c) & 15 of The Control of Narcotic Substances Act, 1997 to which all the appellants pleaded not guilty and claimed trial.

4. In order to prove its case, the prosecution led its evidence and in this regard Muhammad Ashraf Constable was examined as PW1. Mehmood-ul-Hassan ASI Moharrer was examined as PW2. The said witness also chalked out the FIR, which was placed on record as Exhibit-PA/1 on the basis of complaint Exhibit-PA. Asmaullah Assistant Director who was complainant as well as Investigating Officer was examined as PW3 whereas Rashid Mehmood one of the recovery witness was examined as PW4. After recording the evidence of Rashid Mehmood PW4, learned Special Prosecutor closed the evidence of the prosecution. After completion of evidence of the prosecution, the learned trial court recorded the statements

of the appellants under Section 342 of The Criminal Procedure Code, 1898 wherein they pleaded their innocence. The appellants neither opted to produce their defence evidence nor appeared as witness as envisaged under Section 340(2) of The Criminal Procedure Code, 1898. Upon completion of trial, learned trial court held all the appellants guilty of offence under Section 9(c) read with Section 15 of The Control of Narcotic Substances Act, 1997 and in consequence thereof, they were convicted, as detailed in the preceding paragraph No.1.

5. Learned counsel for the appellants contended that the prosecution has badly failed to prove the receipt of spy information. He added that the raid proceedings are in violation of The Police Rules, 1934. In this regard, learned counsel has drawn the attention of this Court to Rule 22.48 of The Police Rules, 1934 and submitted that the prosecution has not at all adhered to this mandatory provision of law, which renders the proceedings *coram non-judice*. Learned counsel further submitted that Captain Umar Altaf who was one of the member of raiding party was neither cited as witness nor was examined during the trial which is fatal to the prosecution case. In the next limb of his arguments, learned counsel contended that the truck was never produced before the learned trial court. Learned counsel argued that the colour of charas was not the same as deposed by the witnesses in their statements and the Chemical Examiner report is inconsistent to this effect. He further submitted that the report of Chemical Examiner is vague and cannot be relied upon. In the last, he submitted that the case is full of doubts and benefit of even a single

circumstance should be given to the appellants. Learned counsel maintained that the prosecution has badly failed to prove the case against the appellants and the judgment of the learned trial court is not tenable under the law. In the alternative, learned counsel for the appellants prayed for lesser sentence. In support of his contentions, learned counsel relied upon ***“MIR MUHAMMAD versus THE STATE”*** (2008 MLD 1333), ***“GUL KHAN versus THE STATE”*** (2005 P Cr. L J 1198), ***“JAVED HAYAT and another versus THE STATE”*** (PLD 2006 Lahore 167), ***“AMJAD ALI versus THE STATE”*** (2012 SCMR 577), ***“MUHAMMAD ZAMAN versus THE STATE and others”*** (2014 SCMR 749), ***“MAULA JAN versus THE STATE”*** (2014 SCMR 862), ***“THE STATE/ANTI NARCOTICS FORCE through Deputy Director versus MUHAMMAD SIDDIQ”*** (2010 YLR 2617), ***“FAREED AHMED LANGRA versus THE STATE”*** (1998 P Cr. L J 1368), ***“ABDUL SATTAR and others versus THE STATE”*** (2002 P Cr. L J 51), ***“QALANDRO alias NAZRO versus THE STATE”*** (1997 MLD 1632), ***“AMEER ZEB versus THE STATE”*** (PLD 2012 Supreme Court 380), ***“MUHAMMAD AZAM versus THE STATE”*** (2010 P Cr. LJ 975) and ***“BEHRAM KHAN versus THE STATE”*** (2013 YLR 1147). The other learned counsels representing the appellants have adopted the same arguments.

6. Conversely, learned Special Prosecutor appearing on behalf of Anti-Narcotics Force submitted that The Police Rules, 1934 are not mandatory and non-compliance of the same does not render the proceedings invalid. He added that even otherwise substantial compliance to the rules was made

by the prosecution, which is evident from the available record. Learned Special Prosecutor submitted that the prosecution has led cogent evidence against the appellants to establish their guilt and all the witnesses were consistent on all material aspects. He added that the prosecution has made all possible efforts for the production of truck but it were the appellants who created hurdles in the production of the same. He submitted that even otherwise the non-production of the same is not fatal to the prosecution. Learned Special Prosecutor submitted that the appellants have failed to bring on record any material discrepancy in the evidence of the prosecution. He argued that case against the appellants is proved beyond any hint of doubt and the learned trial court has rightly convicted them.

7. We have heard the learned counsel for the appellants as well as the learned Special Prosecutor and perused the record with their assistance.

8. As per prosecution story, the appellants were apprehended by the raiding party on 11th of December, 2005 at 02:00 am when they came in a bedford truck bearing registration No.6173-SGA in the area of Allied Turn within the limits of Police Station Anti-Narcotics Force, Faisalabad. On the disclosure and pointation of the appellants 162.8 kilograms charas and 13.5 kilograms opium were recovered in toto from the secret cavities of the truck, driven by Abdul Samad. The detail of the recovery effected from each of the appellant is already mentioned above. In order to prove its case, the prosecution examined Muhammad Ashraf Constable as PW1 who took the parcels, 164 in numbers, to the Chemical

Examiner, Lahore which as per his statement were delivered to the said office on 15th of December, 2005 intact. We have observed that the said witness was not cross-examined by the defence. In addition to the statement of Muhammad Ashraf Constable, Mehmood-ul-Hassan SI was examined as PW2 who was moharrer and also scribe of the FIR Exhibit-PA/1. He deposed that Asmatullah Khan Assistant Director handed over to him 175 sealed parcels said to contain charas/opium alongwith other case property for keeping the same in safe custody in the maalkhana and for sending the parcels to the office of the Chemical Examiner, Lahore. As per his statement, the same were kept in the safe custody and out of 175 parcels, 164 sample parcels were later on delivered to Muhammad Ashraf PW1 on 15th of December, 2005 for onward transmission to the office of Chemical Examiner, Lahore. The defence also did not cross-examine this witness, so to the extent of safe custody of the case property as well as the sample parcels and its transmission to the Chemical Examiner, the defence has raised no question.

9. Asmatullah Khan Assistant Director who was the complainant and the Investigating Officer was produced as PW3. The said witness reiterated the whole event of recovery which resulted into registration of FIR No.11 dated 11th of December, 2005 under Sections 9(c) & 15 of The Control of Narcotic Substances Act, 1997. In his statement, the recovery memos as well as the case property was exhibited as Exhibit-PD to Exhibit-PF whereas the charas and opium were marked separately. During his cross-examination, learned defence counsel specifically confronted him with the questions relating

to the entries in roznamcha regarding receipt of spy information and proceeding of raid. The witness has categorically replied to those questions and to this effect he stated that he had entered in the roznamcha that informer was accompanying at the relevant time. In an answer to a question, he uttered as under :-

“It is correct that I had entered the report regarding my departure from police station stating that I alongwith informer and the members of raiding party were going to arrest the drug peddlers.”

The above portion of the statement of PW3 is sufficient enough to hold that the necessary compliance to the dictates of Rule 22.48 of Chapter XXII of The Police Rules, 1934 was made. Even otherwise the said Rule cannot be termed as mandatory as no consequences are provided for the non-compliance of the same. The Honourable Supreme Court of Pakistan, while dealing with similar proposition of law with regard to determination of status of Rules 4 & 5 of The Control of Narcotic Substances (Government Analysts) Rules, 2001 held that the said rules are not mandatory rather directory. Guidance in this regard can be sought from the principles laid down in the case of ***“TARIQ MEHMOOD versus THE STATE through Deputy Attorney-General, Peshawar” (PLD 2009 Supreme Court 39)***. The relevant extract from the judgment supra is reproduced below:-

“6. Learned counsel for the appellant strenuously contended that the samples separated

from the seized Charas were sent to the Forensic Science Laboratory at belated stage and in the process sufficient time had consumed and in view of rules 4 and 5 of the Control of Narcotic Substances (Government Analysts) Rules, 2001 the sample dispatched for analysis beyond seventy two hours and the report received is illegal and rendered the seizure invalid in the eye of law.

7. The rules have placed no bar on the Investigating Officer to send the samples beyond seventy two hours of the seizure, receive the F.S.L report after fifteen days and the report so received to place before the trial Court. The very language employed in the rules and the effects of its breach provided therein have made the rules directory and not mandatory. These rules cannot control the substantive provisions of the C.N.S.A. and to be applied in such a manner that its operation shall not frustrate the purpose of the Act under which these are framed. Further, failure to follow the rules would not render the search, seizure and arrest under the C.N.S.A. an absolute nullity and non-est and make the entire prosecution case doubtful, except for the consequence provided in the rules. In directory provisions substantial compliance is sufficient and even where there is no compliance at all, the act is not invalidated by such non-compliance if the act otherwise is done in accordance with law.

The delay otherwise in sending the incriminating articles to the concerned quarter for expert opinion cannot be treated fatal in the absence of objection regarding the same having been tampered with or manipulated. There is no allegation of the appellant that the property was tampered with during the process of transit or the remaining property was not charas. It was for the appellant to have taken such plea before the trial court but the appellant did not do so. However, we have examined the chemical Analyzer's report and found that the sealed packets were received by him which contained the signatures of marginal witnesses. In the absence of any allegation of tampering with the property, the argument of learned counsel for the appellant is not sound. In this regard, reference can be made to Amjad v. The State (2006 PCr. LJ 988), Ibrahim v. The State, (2007 YLR 1767 Peshawar) and Abdul Hassan and another v. The State, (2007 YLR 1799 Peshawar)."

In view of above principles laid down with regard to the status of Rules 4 & 5 of The Control of Narcotic Substances (Government Analysts) Rules, 2001, we are of the considered view that since Rule 22.48 of Chapter XXII of the Police Rules, 1934 did not provide any penalty, so the same is merely directory.

10. Coming to the next limb of the arguments of learned counsel for the appellants that Captain Umar Altaf was neither

cited nor produced as a witness. We observe that evidence is not to be weighed on the basis of quantity rather it is the credence of the witnesses which matters. The prosecution has examined Asmatullah Khan Assistant Director as PW3 who was complainant as well as one of the witness of recovery and in addition to his statement, Rashid Mehmood the other recovery witness was also examined as PW4 in order to prove the alleged recovery. The defence has even failed to shatter their evidence on the material aspects, so non-examination of the said witness in no way can be termed as fatal to the prosecution case.

11. So far the contention of the learned counsel with regard to non-production of truck before the learned trial court is concerned, we have examined the record which clearly reflects that all possible efforts were made by the prosecution to produce the same before the learned trial court but the appellants have placed hindrance thereon. Record reveals that the prosecution has moved an application on 7th of March, 2009 before the learned trial court at the time of closure of its evidence but the same was dismissed. The said order was assailed through Criminal Appeal No.379 of 2009 which was later on withdrawn vide order dated 26th of June, 2009 with the following request :-

“Learned Special Prosecutor does not press this appeal and makes a request that he shall move application in the learned Trial Court for re-examination of the recovery witness.

Dismissed as such.”

Thereafter another application was filed before the learned trial court but the same was also dismissed vide order dated 17th of October, 2009 due to strong resistance by the defence. We have examined that the accused did not challenge the nature of recovered substance being charas and opium before the learned trial court and even PW1 Muhammad Ashraf who took the sample parcels to the Office of Chemical Examiner and Mehmood-ul-Hassan PW2 who was moharrer and kept the case property in the maalkhana, were never cross-examined. We observe with all reverence that the facts in the case of ***“AMJAD ALI versus THE STATE” (2012 SCMR 577)*** are altogether different from the facts of instant case. In the said case, spare wheel of the car wherein charas weighing twenty kilograms was concealed was not produced during the trial to verify as to whether it could contain such a huge quantity of narcotics. In our humble view, principles laid down in the said case are not applicable to the case in hand. It is well settled principle of law that facts of every criminal case differs from each other and the attraction of principles laid down in the judgment in one case would depend upon the similarity of facts in the other case. Thus in our humble opinion, when the charas and opium were produced before the learned trial court, non-production of the truck under the circumstances is not fatal to the case of the prosecution. Reliance in this respect can be placed on ***“MUHAMMAD MUSHTAQ and another versus THE STATE” (2008 SCMR 742)***.

12. Now we advert to the next contention of learned counsel for the appellants with regard to the colour of the recovered substance. It is evident from the record that in order to prove

the recovery, the prosecution examined four witnesses, including the two recovery witnesses who have fully corroborated their statements. Even PW1 and PW2 were not cross-examined by the learned defence counsel. In order to further strengthen the case of the prosecution, the report of Chemical Examiner is also available as Exhibit-PM wherein it is clearly mentioned that out of 164 packets sent for chemical analysis, 151 contain charas whereas 13 contain opium. Thus no doubt left in this regard. The judgment reported in **(2014 SCMR 862)** titled as **“MAULA JAN versus THE STATE”** is not at all attracted to the present case as in the said case one of the material witness admitted that the report of Forensic Science Laboratory did not specifically mention that the charas was *“pukhta”* or *“gardah”* as in the said referred case charas *gardah* was recovered from the accused named therein.

13. The Honourable Supreme Court of Pakistan time and again has held that in cases relating to narcotics, the approach of the Court should be dynamic and Court should overlook the technicalities in the larger interest of the country and the public-at-large. The Court is to consider the entire material on record as a whole and if it is convinced that the case is proved, conviction should be recorded. In this regard guidance can be sought from the judgment in the case of **“MUNAWAR HUSSAIN alias BOBI and 2 others versus THE STATE” (1993 SCMR 785)**. The relevant extract from the said judgment is re-produced below :-

“20.....We may observe that the Courts cannot expect in cases of smuggling of narcotics, the evidence of the nature, which is generally

available in an ordinary criminal case, as the persons who indulge in the above nefarious activities are more organized, affluent and influential and, therefore, generally, they manage to cause dents in the prosecution evidence. In such like cases, which are not only damaging the image of Pakistani nation in the comity of nations, but are making our young generation addicts to narcotic, the Courts' approach should be dynamic and they should overlook technicalities in the larger interest of the country and the public-at-large. The Court is to consider the entire material on record as a whole and if it is convinced that the case is proved, conviction should be recorded.....”

The same view was reiterated by the Honourable Apex Court in *“GHULAM QADIR versus THE STATE”* (PLD 2006 Supreme Court 61) and *“TARIQ MEHMOOD versus THE STATE through Deputy Attorney-General, Peshawar”* (PLD 2009 Supreme Court 39). Even otherwise legislature while enacting the Control of Narcotic Substances Act, 1997 has incorporated Section 29 therein which reads as under:-

“29. Presumption from possession of illicit articles. In trials under this Act, it may be presumed, unless and until the contrary is proved, that the accused has committed an offence under this Act in respect of—

- (a) *any narcotic drug psychotropic substance or controlled substance;*
- (b) *any cannabis, coca or opium poppy plant growing on any land which he has cultivated;*
- (c) *any apparatus specifically designed or any group of utensils specially adapted for the production or manufacture of any narcotic drug, psychotropic substance or controlled substance; or*
- (d) *any materials which have undergone any process towards the production or manufacture of narcotic drug, psychotropic substance or controlled substance or any residue left of the materials from which a narcotic drug, psychotropic substance or controlled substance has been produced or manufactured, for the possession of which he fails to account satisfactorily.”*

Bare perusal of above provision of law clearly postulates that by incorporating the same, the legislature, to some extent, has departed from the settled principles of law that burden of proof always lies upon the prosecution. In the cases registered under The Control of Narcotic Substances Act, 1997, once the prosecution has prima-facie established its case then under Section 29 of the Act *ibid*, burden shifts upon the accused to prove contrary to the case of the prosecution. Reliance in this

regard can be placed on ***“KASHIF AMIR versus THE STATE” (PLD 2010 Supreme Court 1052), “GOVERNMENT OF THE PUNJAB versus Malik MUHAMMAD FEROZE and others” (2006 SCMR 927) and “SIKANDAR RAZA versus THE STATE” (PLD 2006 Supreme Court 265).***

14. Now we take the next question raised by learned counsel for the appellants with regard to competency of witness Asmatullah Khan PW3. Learned counsel submitted that he being the complainant of the case cannot act as an Investigating Officer. The answer to this question is available in the judgment reported as ***(PLD 1997 Supreme Court 408)*** titled as ***“STATE through Advocate-General, Sindh versus BASHIR and others”*** in which the Honourable Supreme Court of Pakistan while dealing with the similar proposition held as under :-

“8.....There is no legal prohibition for a police officer to be a complainant if he is a witness to the commission of an offence and also to be an Investigating Officer so long as it does not, in any way, prejudice the accused person. The Court will have to appraise the evidence produced by the prosecution as a whole and will have to form the opinion after evaluating the same.....”

This view was further affirmed in the case of ***“ZAFAR versus THE STATE” (2008 SCMR 1254).***

15. In the last, we would like to ponder upon the stance taken by learned counsel for the appellants with regard to the quantum of sentence awarded to the appellants in the attending circumstances as he submitted that the sentence is too harsh and they are at least entitled to be dealt leniently and their sentence be reduced from imprisonment for life. In this regard, it would be advantageous to first examine Section 9 of The Control of Narcotic Substances Act, 1997 which provides various punishments on the basis of quantity of narcotic drug, psychotropic substance and controlled substance. The same is re-produced below :-

“9. Punishment for contravention of sections 6, 7 and 8. Whoever contravenes the provisions of sections 6, 7 and 8 shall be punishable with—

- (a) imprisonment which may extend to two years, or with fine, or with both, if the quantity of the narcotic drug, psychotropic substance or controlled substance is one hundred grams or less;***
- (b) imprisonment which may extend to seven years and shall also be liable to fine, if the quantity of the narcotic drug, psychotropic substance or controlled substance exceeds one hundred grams but does not exceed one kilogram;***
- (c) death or imprisonment for life or imprisonment for a terms which may extend to fourteen years and shall also be***

liable to fine which may be upto one million rupees, if the quantity of narcotic drug, psychotropic substance or controlled substance exceeds the limits specified in clause (b):

Provided that if the quantity exceeds ten kilograms the punishment shall not be less than imprisonment for life.”

(Underlining is ours for emphasis)

16. It is clearly evident from the proviso of Section 9 that if the quantity of recovered substance exceeds ten kilograms, the legislature has imposed an embargo that the punishment shall not be awarded less than imprisonment for life. Guidance in this regard can also be sought from the case of **“MUHAMMAD TARIQ versus THE STATE” (2009 SCMR 1220)** wherein the Honourable Apex Court, while dealing with the question akin to the of present one held as under :-

“4. We have considered the arguments and have examined the record of the case. According to Section 9(c) of the Control of Narcotics Substances Act, 1997, four kinds of punishments have been provided for an accused, who is found in possession of narcotics substance exceeding one kilogram. The following are the four sentences, which have been enumerated in the aforementioned subsection 9(c) of the Act:--

- (i) Death. (ii) Imprisonment for life.*
- (iii) Imprisonment for a term which may extend*

to 14 years, and (iv) Fine of one million rupees.

5. However, in the event of quantity of narcotics substance exceeding 10 kilograms, a limitation has been imposed that the punishment shall not be less than imprisonment for life. The question arises as to why death, imprisonment for life and imprisonment up-to 14 years, have been provided in subsection 9(c) of the Act. In our view, the imposition of punishment has been left upon the discretion of the Court, considering the facts and circumstances of each given case. There may be cases of different types of accused, who may be involved in the commission of the offence of section 9(c) of the Act, but their role, part, act or omission, character or conduct is such as to call for lesser punishment than of death. The case of first offender, who is not a drug baron can fall in this domain. An accused having no antecedents of any criminal case to his score, he being not an incorrigible, desperate, or hardened criminal, the punishment lesser to the death in such case can serve the purpose of dispensation of criminal justice. In such cases, the extreme penalty of death can be avoided to be handed down to the accused, to grant him a chance to mend his ways in his future life. In the present case, we have not been informed that the

appellant was previously involved in any case of such nature.

6. Accordingly, we consider the extreme penalty of death would be too harsh to be imposed upon the appellant. He being a first offender, the death sentence is converted to that of punishment of the imprisonment for life in accordance with embargo appended in the shape of proviso to section 9(c) of the Act.....”

17. Thus while taking into consideration the proviso to Section 9 of The Control of Narcotic Substances Act, 1997 and the principles laid down in judgment supra, we hold that when once the quantity of recovered substance exceeds the limits prescribed therein no discretion will be left with the court to award lessor punishment than the mentioned therein.

18. In the light of evidence produced by the prosecution, we are of the considered opinion that the prosecution has successfully discharged initial onus of proof beyond any shadow of doubt. Resultantly, the burden shifted to the defence to discharge said onus and prove innocence but the defence has miserably failed to discharge the said burden in terms of Section 29 of The Control of Narcotic Substances Act, 1997. Even otherwise such a huge quantity cannot be planted or foisted upon the appellants, as held in the cases of “**NAZEEM KHAN versus THE STATE**” (NLR 2004 Criminal 188) and “**ABDUL RASHEED versus THE STATE**” (2009 SCMR 306).

19. In view of above discussion, we have no doubt in our mind that the prosecution has successfully proved its case against the appellants without any hint of doubt by producing cogent and convincing evidence, both oral as well as documentary. The oral version was even supported by the report of Chemical Examiner. The learned trial court in the circumstances has rightly recorded the conviction of the appellants after properly appraising the evidence. We find no illegality or infirmity in the impugned judgment of the learned trial court, which in all respects is unexceptionable. The judgment under challenge requires no interference by this Court in exercise of appellate jurisdiction.

20. The nutshell of the above discussion is that we do not find any substance in this appeal. Consequently the same is hereby **dismissed** while maintaining the conviction of the appellants as awarded by the learned trial court by way of judgment dated 23rd of October, 2009.

(SARDAR TARIQ MASOOD)
JUDGE

(MIRZA VIQAS RAUF)
JUDGE

Approved For Reporting

(MIRZA VIQAS RAUF)
JUDGE

*Shahbaz Ali**